

Amendment No. 2 to HB1177

Hicks G
Signature of Sponsor

AMEND Senate Bill No. 963*

House Bill No. 1177

by deleting Section 3 and substituting instead the following:

SECTION 3. Tennessee Code Annotated, Section 52-6-102, is amended by deleting subdivision (e)(2) and substituting instead the following:

(2)

(A) If a defendant is found to be incompetent to stand trial, any misdemeanor charges pending at the time of the incompetency determination must be retired no later than two (2) years after the date of arrest when the misdemeanor charge or charges have not otherwise been disposed of except that misdemeanor charges must not be retired pursuant to this subdivision (e)(2) if the defendant is restored to competency prior to the date on which the misdemeanor charge or charges would have otherwise been retired under this subdivision (e)(2).

(B) When a defendant whose charges were retired in accordance with this subdivision (e)(2) is released into the community, the chief officer shall:

(i) Notify the court of the defendant's discharge; and

(ii) Provide the court and the sheriff with an outpatient treatment plan that accounts for the safety of the community.